The Commonwealth of Massachusetts
Executive Office of Health and Human Services
Department of Public Health
Bureau of Health Professions Licensure
250 Washington Street, Boston, MA 02108-4619

Tel: 617-973-0960
www.mass.gov/dph/boards

Board of Registration in Pharmacy
Policy 2026-01: Loss or Theft of Controlled Substances

I. Purpose

In accordance with 247 CMR 7.04(2)(g) and 20.03(7), this policy sets forth the procedures for resident Board-licensed pharmacies and wholesalers to report confirmed losses and thefts of controlled substances to the Board of Registration in Pharmacy (Board).

II. Reporting Requirements

Within 7 calendar days of a controlled substance loss or theft as outlined below, the pharmacy or wholesaler must submit to the Board the *Pharmacy Loss of Controlled Substances Report (RLCS)* and DEA Form 106 (if applicable). The pharmacy or wholesaler must also comply with any other reporting requirements of the DEA, state, and local police.

Pharmacies and wholesalers must report the following types of confirmed losses:

A. **All losses** related to theft, employee pilferage, or diversion no matter the quantity or schedule of the medication.
B. All **significant** losses of Schedule II through V controlled substances.
C. All **significant** losses of Schedule VI controlled substances that are required to be reported to the Prescription Monitoring Program.

*****Do not report unconfirmed losses.**

Please see DEA Guidance regarding what constitutes a "significant loss".

III. Nonreportable Losses

Unless otherwise noted above, **insignificant losses** do not require reporting. Losses determined to be insignificant after internal investigation must be documented onsite (e.g., logbook, electronic log) and tracked for adverse trending.

Regardless of drug schedule, **losses that result from a confirmed dispensing error** do not have to be reported. However, the pharmacy must comply with all requirements of 247 CMR 15.00: *Continuous Quality Improvement Program*.

Supersedes Policy 2022-01

Please direct any questions to: DHPL-OPP.ADMIN@mass.gov